TRUSTEES FOR THE TIME BEING OF MUNYASHA TRUST
and
GEORGE MUSENGI
and
ANNAVESTAH MUDIWA
and
GRAY MUDIWA
and
ZVIMBA RURAL DISTRICT COUNCIL
and
THE SHERIFF OF THE HIGH COURT N.O.

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 9 and 10 June 2026

Opposed Application

Ms *N.K. Chirisa, with Mr D. Sheshe,* for the applicant
Mr *Z.W. Makwanya*, for the 1st respondent
Mr *Nyamukondiwa*, for the 2nd & 3rd respondents

MAMBARA J:

[1] This is an application brought in terms of r 29(1)(a) of the High Court Rules, 2021, for the rescission of the order granted under HCH4585/25 and for the joinder of the applicant to those proceedings. I adopted a rolled-up approach and heard full argument from all counsel. The crisp issue is whether an order affecting Stand 0428 Sandton can properly stand where the person asserting a prior sale, payment, possession and cession-related dealings concerning that same property was never cited and was never heard.

[2] The papers show that the applicant concluded a written agreement of sale in June 2024 for Stand 0428 Sandton; paid a deposit of US$85,000; placed the balance of US$25,000 with its legal practitioners for collection on cession; engaged in cession-related processes with the local authority; paid cession, occupation and title-related charges; and says it took

occupation. The order under HCH4585/25 later directed cession of the same stand to the first respondent, and the later consent order under HCH5500/25 purported to entrench that position. The applicant was not cited in either matter.

[3] The first respondent's point *in limine* is that the applicant has no *locus standi* because its agreement was with Gray Homes Construction (Private) Limited and not with the parties in HCH4585/25. The difficulty with that submission is that it confuses standing with ultimate success. The authorities cited in the filed heads, including *Buchwa Iron Ore Mining Company (Pvt) Ltd* v *Sheriff of the High Court & Anor* SC 94/24, *Burdock Investments (Pvt) Ltd* v *Time Bank Ltd & Ors* HH 194/03, *Stevenson* v *Minister of Local Government and National Housing & Ors* SC 38/02, and The Evangelical Church of *Zimbabwe* v *Reverend Dogor Isaac Soda* HH 458/15, all point to the same test: whether the litigant has a direct and substantial interest in the subject matter and the outcome. On that test, the applicant plainly qualifies.

[4] The applicant's interest is not indirect, remote or merely academic. It is grounded in a written sale agreement relating to the very property that became the subject of the impugned order; substantial payment under that agreement; an asserted tender of the balance through lawyers; cession-related paperwork; and occupation and developmental acts. The respondents may dispute the efficacy of those acts. They may say Gray Homes had nothing to sell. They may attack the authenticity of some documents. But those are all merits issues. They are not a basis for shutting the applicant out of court at the threshold.

[5] I accordingly dismiss the point *in limine* on *locus standi.*

[6] I turn to the rescission itself. The 1st respondent and the 2nd and 3rd respondents relied on *Wakatama & Ors* v *Madamombe* 2011 (1) ZLR, *Dimwazha & 9 Ors* v *Mhambare* [2021] ZWSC 116, and particularly *Nyamayaro* v *Albert Chitaunhike N.O & Anor* HH700/22, which incorporates a passage from *Rudo Tiriboyi* v *Albert Jani & Anor*. That body of authority, as cited on the record, makes the sensible point that non-joinder, without more, is not always an "error" and does not automatically nullify proceedings. I agree. But that is not this case. The same quoted passage distinguishes the situation where the court, being made aware of the interest of the uncited party, nevertheless proceeds to grant an order affecting that party's rights. That is the distinction that governs here.

[7] Had the court which granted HCH4585/25 been told that the same stand had already been sold; that US$85,000 had already been paid; that the balance had been placed with legal practitioners for collection on cession; that cession-related steps had been taken; and that the purchaser claimed possession, it would not have been open to that court to proceed as if no competing legally cognisable interest existed. On the oral argument placed before me in the present matter, counsel for the first respondent accepted, albeit reluctantly, that had those interests been known, he would not have proceeded to seek the order in the form he did, and the court itself would not have granted it. That concession brings the case squarely within the logic of r 29(1)(a).

[8] I am therefore satisfied that the order under HCH4585/25 was erroneously sought and granted in the absence of a party whose interests were directly and adversely affected. The applicant meets the requirements for rescission under r 29(1)(a). Counsel for the applicant also referred me, orally, to *Mashingaidze* v *Chipunza & Others* HH688/15, and the way the matter was argued before me was entirely consistent with the rescission enquiry there identified.

[9] I add this. Even if one approached the matter through the broader rescission principles discussed in *Deweras Farm (Pvt) Ltd & Ors* v *Zimbank* 1998 (1) ZLR 368 (SC), the applicant would still succeed. The applicant explains its absence by non-citation; it moved with speed once it discovered what had happened; and it has shown a bona fide and serious case worthy of ventilation. What the respondents seek, in substance, is a merits victory obtained before joinder. That is not something this court should sanction.

[10] The first respondent also relied heavily on HCH5500/25 as an extant barrier to this application. I reject that submission. HCH5500/25 was a consent order among parties who did not include the present applicant. More importantly, the deed of settlement incorporated in that order expressly hinged itself on HCH4585/25 and purported to regulate the effects of compliance with that very order. It is derivative, not independent. Once HCH4585/25 is rescinded, HCH5500/25 cannot be permitted to survive as a procedural obstacle or as a source of supposed exclusivity against a party who was never heard.

[11] In the exercise of this court's inherent jurisdiction to protect its own process and to ensure the orderly administration of justice, I consider it proper, *mero motu*, to set aside the order in HCH5500/25 as well. I do so for hygiene purposes. Leaving that order on the record

would serve only to breed confusion, invite collateral skirmishes, and place unnecessary hurdles in the path of the fully ventilated adjudication that this dispute now plainly requires.

[12] I make no final finding on the ultimate merits of the competing proprietary claims. I do, however, observe that the papers disclose troubling shifts between the use of a company to contract and incur obligations, and the later use of personal capacities to settle those obligations by dealing with the same property. That conduct is, at the very least, sufficiently concerning that the matter ought not to proceed on truncated process. It requires full ventilation in proceedings to which all interested parties are properly joined.

[13] Costs ordinarily follow the event. This was a matter that ought, on any sensible appreciation of the applicant's interest, to have been resolved without the opposition that was mounted. The applicant has been put to wholly avoidable expense.

[14] In the result, it is ordered that:

1. The application for rescission and joinder be and is hereby granted.
2. The order granted in case number HCH4585/25 on 15 October 2025 be and is hereby rescinded in terms of r 29(1)(a) of the High Court Rules, 2021.
3. The applicant, Trustees for the Time Being of Munyasha Trust, be and is hereby joined as the fifth respondent in case number HCH4585/25.
4. The first respondent in HCH4585/25 shall, within five working days of service of this judgment, file and serve upon the applicant's legal practitioners an amended court application in HCH4585/25 reflecting the joinder ordered above.
5. The newly joined respondent shall file its notice of opposition and opposing affidavit in HCH4585/25 within ten days of such service.
6. Pending the final determination of HCH4585/25 after such joinder, the fourth respondent shall not process, register, endorse, facilitate or give effect to any cession, transfer or administrative change in respect of Stand 0428 Sandton, Zvimba, if such step is founded upon HCH4585/25 or HCH5500/25.
7. For hygiene purposes, and *mero motu*, the order granted by consent in R-HCH5500/25 on 11 November 2025, together with the deed of settlement incorporated therein as an order of court, be and is hereby set aside.

8. The 1st, 2nd and 3rd respondents shall, jointly and severally, the one paying the others to be absolved, pay the applicant's costs of suit.

MAMBARA J:……..

Masiya Sheshe & Associates, applicant's legal practitioners
Makwanya Legal Practice, first respondent's legal practitioners
Ingwani Chipetiwa Group, second and third respondents' legal practitioners